

► ADVERTISERS ARE BREATHING

easy after a clarification from the Ministry of Information and Broadcasting said that the self-declaration in advertisements will be restricted to the food and health sectors and needs to be done once a year.

Welcoming the move, Sandeep Goyal, Chairman of ad agency Rediffusion, says the I&B ministry's amendment, which came on July 3, is sensible and in the right direction. "The earlier requirement (self-declaration for each ad) was going to create a lot of bureaucracy. This yearly declaration for the food and health categories and probable amnesty for others will save a lot of unnecessary work," he says.

Earlier, the self-declaration rule, which came into effect on June 18, had said that all advertisers and advertising agencies had to obtain a 'Self-Declaration Certificate' for ads before they were printed or aired.

Goyal says that the objective of the new rule is to curb puffery. "As long as that objective is met, self-declaration is good for the ethics of the business." The annual self-declaration certificate will need to be uploaded on the ministry's Broadcast Seva website or the Press Council of India portal, apart from making available that proof to anyone airing or publishing that ad.

The decision from the ministry comes after there were issues with ingredients that went into some malted food drinks. "It is good since it fights socially ostracised categories like sugar and salt. Now is the time for restraint for those making ridiculous claims," says Harish Bijoor, CEO of brand strategy consulting firm Harish Bijoor Consults Inc.

With health, too, coming under the umbrella, cosmetics and skin-care ads will be looked at very carefully. "What goes into the mouth or on to one's skin must be governed very strictly. Over time, there is a good chance that the number of complaints will drop," says Bijoor.

FOOD FOR THOUGHT



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**EXECUTION TO
BE A CHALLENGE,
GIVEN THE HIGH
VOLUME OF ADS**



**ADVERTISERS WILL
NEED TO MAKE
CLAIMS WITH MORE
DISCRETION**

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The order put out states, "that the enforcement of the fundamental right to health... encompasses the right of a consumer to be made aware of the quality of products being offered for sale by manufacturers, service providers, advertisers and advertising agencies".

Given the volume of ads put out each year—Bijoor estimates the number to be 3 million for digital alone—execution will be a challenge. K.S. Narayanan, an independent food advisor, says all large companies or brands have an internal mechanism of vetting ad claims and packaging declarations, among other things, and to that extent, this is just an added compliance. "Entities that don't have such a process in place or are lax about the issue will hopefully restrain themselves from making misleading claims. It should be interesting to see how those brands crossing the line will be dealt with in terms of penal

provisions or perhaps cases being fast-tracked," says Narayanan.

The issue is still evolving and there will be many grey areas along the way. "The order will need to give more clarity on whether all advertising mediums are covered or if it is limited to those specified in the directive and advisory, such as TV channels, radio stations, print and digital media. One will need to know if this applies to out-of-home advertising," says Anushree Rauta, Partner, ANM Global, a full-service commercial law firm; and Founder, Iprmentlaw, a website that tracks media & entertainment laws.

With time, it is fair to say that more clarity will emerge on many issues. If advertisers become more responsible about their claims, it will only lead to more brand loyalty from consumers, especially when it concerns food and health. **BT**

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